

DEPARTMENT OF VETERANS AFFAIRS

FAR 8 – Justification for Limiting Sources (LSJ)

For

Limiting Sources (<SAT)

Acquisition Plan Action ID: [REDACTED]

JOFOC Tracking Number: [REDACTED]

1. Department of Veterans Affairs, Network Contracting Office 19, 6162 S. Willow Drive, Suite 300, Greenwood Village, CO 80111, procuring for the Rocky Mountain Regional VA Medical Center located at 1700 N Wheeling St., Aurora, CO 80045, and PFC Lindstrom VA Outpatient Clinic located at 3141 Centennial Blvd, Colorado Springs, CO 80907.

This request is funded by 2237: [REDACTED]

2. **Description of Action:** This acquisition is conducted under the authority of the Multiple-Award Schedule Program (41 U.S.C. 152(3) and 40 U.S.C. 501). This procurement is for the establishment of a sole source Firm-Fixed-Price contract with Loyal Source Government Services to provide a nursing staffing services for Eastern Colorado Healthcare System (ECHCS).

Order against: ☒ FSS Contract Number: 36F79722D0185

Name of Proposed Contractor: Loyal Source Government Solutions
Street Address: 12612 Challenger Parkway
City, State, Zip: Orlando, FL 32826-2784
Phone: (407) 306-8441

3. **Description of Supplies or Services:**

The estimated value of the proposed action is \$ [REDACTED]

The RMR VAMC has an urgent need for 2,752 hours for Registered Nurses, 688 hours for Licensed Practical Nurses, and 3,440 hours for Medical Assistants. A long-term procurement has been awarded (BPA 36C25925N0031-37) to seven SDVOBs. The current long term expires 9/30/2029. However, there is not enough time to credential the new staff, as the current time frame is about three months to on-board.

This short-term contract will be needed with the current vendor, Loyal Source Government Solutions to ensure there are no lapses in patient care services. The volatile staffing environment and extended timelines required to adequately define the requirement did not allow the award of a long-term contract by 10/01/2024. A short-term contract will ensure continued patient care services with no lapse in services. The total value of this short-term

procurement is [REDACTED] for a three-month performance period. The contract will include FAR 52.217-8 - Option to Extend Services. If exercised for up to 6 months, the 52.217-8 option will be exercised at the same rates as those in effect under the contract at the time the contract is extended.

4. Authority:

Order Against FSS: Authority of the Multiple Award Schedule Program, Title III of the Federal Property and Administrative Services Act of 1949 (41 USC 251, et seq.); Title 40 USC 501, Services for Executive Agencies; and Section 803 of the National Defense Authorization Act of 2002 (PL 107-107) and implemented by [FAR 8.405-6](#). Mark the applicable exception:

☒ **An urgent and compelling need exists**, and following the procedures would result in unacceptable delays([FAR 8.405-6\(a\)\(1\)\(i\)\(A\)](#));

☐ **Only one source** is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized; ([FAR 8.405-6\(a\)\(1\)\(i\)\(B\)](#));

☐ In the interest of economy and efficiency, the new work is **a logical follow-on** to an original Federal Supply Schedule order and the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. **The original order was not previously issued under sole-source or limited-sources procedures** ([FAR 8.405-6\(a\)\(1\)\(i\)\(C\)](#)); or

☐ **Items peculiar to one manufacturer.** An item peculiar to one manufacturer can be a particular brand name, product, or a feature of a product, peculiar to one manufacturer). A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer ([FAR 8.405-6\(b\)](#)).

5. Rationale/explanation to support cited authority: An Urgent and compelling need exists. The Nurses and Medical Assistants provided by Loyal Source Government Solutions are already credentialed to work at Eastern Colorado Healthcare System (ECHCS). This emergency contract action will prevent a loss in essential services while contracted staff from Millbrook Support Service and EGA Associates are credentialed.

6. Note that this determination satisfies the requirements of [FAR 8.405-6](#). The requirement to prepare a written justification [IAW FAR 6.303](#) does not apply to Federal Supply Schedules.

[REDACTED]
Contracting Officer
NCO 19